

An Act

ENROLLED SENATE
BILL NO. 1561

By: Howard of the Senate

and

Archer of the House

An Act relating to emergency medical services; amending 63 O.S. 2021, Section 1-2509, which relates to violations; updating statutory references; modifying authority of the State Commissioner of Health to impose disciplinary action; specifying additional forms of disciplinary action; updating statutory language; and providing an effective date.

SUBJECT: Oklahoma Emergency Response Systems Development Act

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-2509, is amended to read as follows:

Section 1-2509. A. 1. No person, company, governmental entity, or trust authority may operate an ambulance service within this state except as provided in this section. The State Commissioner of Health, the district attorney of the county wherein the ambulance service operates or may be found, or the Attorney General of this state shall have the authority to bring an action to enjoin the operation of any ambulance service not in compliance with the provisions of ~~this act~~ the Oklahoma Emergency Response Systems Development Act.

2. A ground ambulance service based outside of this state that is licensed and in good standing in its home state may respond to an emergency request for care and transport of a patient within this

state provided no local licensed ambulance service is readily available, and may be exempt from the licensing requirements of this state pursuant to rules promulgated by the State ~~Board~~ Commissioner of Health.

3. Requests for service must be referred by an Oklahoma emergency dispatch center. The ~~Board~~ Commissioner may require such exempt ambulance service to subsequently provide documentation of emergency response activities performed within this state.

4. The State Department of Health shall have the authority to investigate any complaint associated with an emergency response by an out-of-state ambulance service in the same manner as ambulance services licensed by the Department within this state.

B. The Commissioner shall have the authority to ~~revoke or suspend any license, to issue probationary licenses, or to levy such administrative fines and penalties as may be deemed necessary, impose disciplinary actions~~ for violations of the provisions of ~~this act,~~ the Oklahoma Emergency Response Systems Development Act in accordance with the severity of the violation and subject to the provisions of the Administrative Procedures Act. Disciplinary actions may include, but are not limited to, the following:

1. Revocation or suspension of any license;
2. Probation;
3. A period of free public or charity service;
4. Satisfactory completion of an educational, training, or treatment program or programs; and
5. Administrative fines and penalties.

C. The powers afforded the Commissioner within the general enforcement provisions of the Oklahoma Public Health Code are additionally incorporated herein.

~~C.~~ D. In addition to any other penalties, any person, company, governmental entity, or trust authority who violates any of the provisions of ~~this act~~ the Oklahoma Emergency Response Systems

Development Act relating to compliance with the provisions of ~~this act~~ the Oklahoma Emergency Response Systems Development Act or of standards, specifications, procedures, and rules adopted by the ~~Board~~ Commissioner may be punished by the assessment of a civil penalty ~~of~~ not more than One Hundred Dollars (\$100.00) for each violation. Each day a violation continues shall be considered a separate offense.

~~D.~~ E. The operation or maintenance of an ambulance service in violation of ~~this act~~ the Oklahoma Emergency Response Systems Development Act, or the rules promulgated by the ~~Board~~ Commissioner, is declared a public nuisance inimical to the public welfare. The Commissioner in the name of the people of the state, through the Attorney General, or the district attorney of the county in which the ambulance service is located, may, in addition to other remedies herein provided, bring action for an injunction to restrain such violation or to enjoin the future operation or maintenance of any such ambulance service.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 5th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____